

2:00 PM

LINE 9

24-CIV-05915

COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO REQUESTS FOR ADMISSIONS, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

The court DENIES plaintiff County of San Mateo's motion to compel defendant Encore Textile Service (Encore) responses for request for admissions, set one and for sanctions.

The court notes that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, plaintiff refers to compelling Encore "Responses to Defendant's Request for Admissions, Set One." Since plaintiff is seeking to compel, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's requests for admissions. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to June 23, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) However, Encore filed a response, which waives the objection. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

Further, plaintiff misapprehends the law. When the responses are entirely objections, which appears to be the case here, only the attorneys' signature and not a verification is required. (See e.g. *Cal. Prac. Guide Civ. Pro. Before Trial* 8:1364.2 (TRG June 2026 update) [citing Code Civ. Proc., 2023.240, subd. (a), 8:1477, *id.*, § 2031.250 re document demands].) Further, although a separate statement in support of a motion to compel is not required when there are no responses, (Cal. Rules of Court, rule 3.1345(b)(1)), it is required when there are responses and a separate statement was required here. (*Id.*, rule 3.1345(a).) Thus, plaintiff's motion is procedurally deficient. Plaintiff makes no attempt to show that the requests are proper and the objections are improper, which is its burden on a motion to compel.

The court notes that Encore states that it has served responses, but there is no declaration supporting that statement and the responses are not attached.

The court notes that there are two motions to compel set for July 14, 2026 and the court encourages the parties to informally resolve their dispute and vacate the hearings.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Encore shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

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COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO SPECIAL INTERROGATORIES

TENTATIVE RULING:

The court DENIES plaintiff County of San Mateo's motion to compel defendant Encore Textile Service (Encore) to respond to special interrogatories, set one and for sanctions.

The court notes that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, plaintiff refers to compelling Encore "to respond to Defendant's Special Interrogatories, Set One." Since plaintiff is seeking to compel, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's special interrogatories. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to June 23, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) However, Encore filed a response, which waives the objection. . (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

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